

Court No. - 37

Case :- WRIT - C No. - 44325 of 2013

Petitioner :- Dara Singh

Respondent :- The State Of U.P. And 3 Others

Counsel for Petitioner :- Ashutosh

Counsel for Respondent :- C.S.C.,Nripendra Mishra

Hon'ble Ashok Bhushan,J.

Hon'ble Vipin Sinha,J.

Mr. Pranjal Mehrotra, Advocate has put in appearance on behalf of respondent nos. 2 and 3.

Put up on Monday i.e. 2.9.2013 as fresh showing the name of Mr. Pranjal Mehrotra, Advocate for respondent nos. 2 and 3.

Order Date :- 29.8.2013

Kuldeep/

Court No. - 37

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Petitioner :- Dara Singh

Respondent :- The State Of U.P. And 3 Others

Counsel for Petitioner :- Ashutosh

Counsel for Respondent :- C.S.C.,Nripendra Mishra

Hon'ble Ashok Bhushan,J.

Hon'ble Vipin Sinha,J.

Put up on Monday i.e. 09/9/2013, as fresh.

Order Date :- 2.9.2013

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Court No. - 37

Case :- WRIT - C No. - 44325 of 2013

Petitioner :- Dara Singh

Respondent :- The State Of U.P. And 3 Others

Counsel for Petitioner :- Ashutosh

Counsel for Respondent :- C.S.C.,Nripendra Mishra,Pranjal Mehrotra

Hon'ble Ashok Bhushan,J.

Hon'ble Vipin Sinha,J.

Supplementary affidavit filed on behalf of the petitioner in Court today is taken on record.

Petitioner's case in the writ petition is that his electric connection was never energised although it was sanctioned in the year 1998. Petitioner further submit that for the first time in the year 2012 a demand notice has been issued by the Executive Engineer on 7.8.2012.

Sri Pranjal Mehrotra, Advocate appearing for respondent nos. 2, 3 and 6 prays for and is allowed three weeks' time to file counter affidavit.

List thereafter for admission.

In the meantime, no coercive steps shall be taken in pursuance of demand notice dated 7.8.2012.

Order Date :- 9.9.2013

Kuldeep/

Court No. - 10

Case :- WRIT - C No. - 44325 of 2013

Petitioner :- Dara Singh

Respondent :- The State Of U.P. And 3 Others

Counsel for Petitioner :- Ashutosh

Counsel for Respondent :- C.S.C.,Nripendra Mishra,Pranjal Mehrotra

Hon'ble Arun Tandon,J.

Hon'ble Harsh Kumar,J.

Heard learned counsel for the parties.

This writ petition has been filed for quashing of the demand notice dated 7.8.2012 issued by the respondent no.2, Executive Engineer, Vidyut Vitran Khand, Chandpur, Paschhimanchal Vidyut Vitran Nigam Limited, Bijnor.

We may record that recovery certificate was issued in the year 2012. The recovery must have been effected by now. We may also record that recovery under Section 3 of the U.P. State Government Electricity Dues Act, 1958 has been challenged without challenging the assessment order.

In our opinion, if the petitioner is not satisfied with the demand so raised, he may seek his remedy under the provisions of Electricity Act, 2003/ Electricity Supply Code, 2005 as may be applicable.

The writ petition is dismissed.

Order Date :- 9.2.2016

Ashish Pd.